

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 22, 2026 TIME: 8:30 A.M.

No. 25CV01211

WELLS FARGO BANK, N.A. v. FARLEY

**PLAINTIFF'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED
AND OF NONAPPEARANCE**

The motion is granted. The Court deems admitted all matters specified in the requests for admission, set one. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff demonstrated it served a set of requests for admission on September 23, 2025, and no responses have been served to date. (Lio Declaration, ¶¶ 1-2.) Defendant's initial opposition indicated he believes the motion is a violation of his civil rights because the complaint fails to prove a legally binding contract. He also declares he is disabled with a chronic health condition (seizures) and this action is causing him harmful stress. Defendant does not dispute he received the discovery. His subsequent opposition filed June 5, 2026, reiterates these unpersuasive arguments.

Plaintiff did not seek sanctions.

DEFENDANT'S MOTION TO DISMISS

The motion is denied.

Plaintiff Wells Fargo N.A. filed this breach of contract action against defendant Dennis Francis Farley for unpaid credit charges of \$11,985.29. (Complaint, April 18, 2025.) Defendant, who is self-represented, filed an answer on August 12, 2025. He filed a previous motion, heard on April 6, 2026, claiming the contract attached to the complaint has nothing to do with him, and is not evidence of any valid debt owed by him. His motion is based on Code of Civil Procedure section 26, “An obligation is a legal duty, by which one person is bound to do or not to do a certain thing, and arises from either of the following: (a) Contract. (b) Operation of law.” Defendant's subsequent amended motion, filed June 5, 2026, continues to rely on these unpersuasive grounds and was untimely filed for the June 22, 2026, hearing date.

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 22, 2026 TIME: 8:30 A.M.

The motion is denied since defendant's grounds (CCP § 26) do not support any motion to dismiss; that statute merely defines an obligation. Further, defendant's motion is untimely since it seeks to do what a demurrer would do, but defendant failed to bring that motion within the time to answer. Finally, there was no proof of service for the original motion and plaintiff declares it was only discovered by reviewing the court docket.

Defendant's status as a self-represented party does not provide a basis for preferential treatment. (*Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31.) "When a litigant is appearing in propria persona, he is entitled to the same, but no greater, consideration than other litigants and attorneys." (*Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638.) This means that defendant is "held to the same restrictive rules of procedure as an attorney." (*Id.* at 638-639; (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) "[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation...." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985, citation omitted.)

No. 25CV01046

BENCHLAND PARTNERS v. OZAWA

DEFENDANT OZAWA'S DEMURRER TO FIRST AMENDED COMPLAINT

As explained below, the Court overrules the demurrer. Defendant shall file his answer within 20 days of the hearing.

I. BACKGROUND

Plaintiff Benchland Partners is a general partnership, which has a general partner, The Holcomb Corporation. Plaintiff is the managing general partner of Seascape Resort, Ltd., which owns and operates Seascape Beach Resort. (First Amended Complaint ("FAC") ¶¶ 1-3.) Defendant Ozawa is the majority limited general partner of Seascape Resort, Ltd., which resulted from his \$4,000,000.00 investment in 1991. (FAC ¶¶ 9-11.)

Plaintiff alleges that this lawsuit resulted in part from Ozawa's improper refusal to consent to the refinance of an existing business loan for Seascape Resort, Ltd. necessary for the resort's continued operations. (FAC ¶ 9.) The resort has recently faced significant financial problems, lawsuits by its homeowners' association and individual homeowners, and potential interruptions to its continuing operations.